Sarwari decided to have a stopover in India on his way back to Afghanistan from South Yemen. A friendly neighbouring country, India was undergoing its own economic and political crises, and was wary of interfering in the domestic affairs of another country. New Delhi had recently burnt its fingers in Sri Lanka where it had been fighting a bloody war with the Liberation Tigers of Tamil Eelam (LTTE), the most militarily potent Tamil separatist organisation. If the planned coup were to fail, Sarwari hoped to remain safe in a fragile, democratic, and friendly India. Despite Najibullah's close links with New Delhi, Sarwari expected decent treatment from the Indians who, crucially for him, did not have an extradition treaty with Afghanistan. Either way, he planned to stay in India for a month and then fly back to Kabul, just before the coup.

On January 16, 1990, Sarwari landed in Bombay, and was cordially received by officials from the Afghan Embassy.[9] He traveled to Delhi and stayed at a plush hotel in the South Western part of the city. Little over a month later, on 20 February 1990 (sixteen years before he was sentenced to death), Sarwari was ready to fly back to Afghanistan. He was minutes away from boarding the Indian Airlines flight 451 to Kabul when, allegedly, an Afghan embassy official turned up at the immigration counter of the Indira Gandhi International (IGI) Airport, and under murky circumstances, seized Sarwari's passport that contained a valid six-month-long Indian visa.[10] A scared and exasperated Sarwari was stuck in India. Having been put out of play by Najibullah's proactive measures (without, apparently, India disapproving such moves), Sarwari's fate was now tied to the success or failure of Tanai's coup. Unfortunately for him, the attempted coup of March 1990 failed miserably. Tanai somehow managed to escape to Pakistan, while a furious Najibullah (who believed that it was Sarwari who had masterminded the coup) ordered a massive crackdown within the military and government institutions to rid them of Tanai and Sarwari's sympathisers.

Sarwari, thus, was a condemned man much before the court sentenced him to death in 2006. If he were to return to Najibullah's Afghanistan, the gallows, or maybe worse, torture, awaited him. Sarwari tried a host of methods to seek help from Indian authorities. He wrote a beseeching letter to the foreign secretary (FS) of India on 12 April 1990, drawing the latter's attention to his case and requesting security, as he feared for his life.[11] He also reached out to the then